

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO.: 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

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RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT

Respondent OAK WAY CARGO, LLC (“Oak Way Cargo”), pursuant to 46 C.F.R. § 502.5, files this Motion for Confidential Treatment, and in support thereof, states as follows:

1. At the heart of this dispute lies a contract entered into between Ernani Ferraz and Diego de Sousa Santana for the transfer of ownership of Complainant Way 2 Go Cargo Corp., among other entities.
2. That contract contains an express confidentiality provision, designating as confidential information “[f]inancial data, pricing, and valuation of the company,” as well as “terms, conditions, and methods of negotiation” of the contract.
3. As described in Respondent’s Motion to Dismiss, there are currently three related actions pending in Florida courts concerning the ownership of Way 2 Go Cargo Corp.
4. The judge presiding over one of those Florida state court actions has already entered an order sealing the complaint, amended complaint, and the contract attached thereto.¹ Those materials are therefore not available to the public.

¹ See Case No. 2025-009266-CA-01, Circuit Court of the Eleventh Judicial Circuit in and for Miami Dade County, Florida.

5. Respondent acknowledges that this Commission imposes more stringent requirements for designating information as confidential under 46 C.F.R. § 502.141(j)(1)(vii).

6. Nevertheless, in light of the prior Florida order sealing the identical documents, and out of an abundance of caution, Respondent is submitting the entirety of the state court complaint, the amended state court complaint, and the subject contract in fully redacted form.

WHEREFORE, Respondent respectfully requests that the Administrative Law Judge enter an Order designating as Confidential exhibits 1-3 to Respondent's Motion to Dismiss Claimant's Complaint, and granting such other relief as the Commission deems just and proper.

Dated: August 25, 2025.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for WAY2GO CARGO CORP. at sarah@epgdlaw.com on this 25th day of August, 2025.

By: /s/ Schneur Zalman Kass
SCHNEUR ZALMAN KASS

